

have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Civ. Proc. Code § 437c(c).)

Defendants bring their Motion as to the three causes of action ("COA") pled against them (Nos. 13, 14, and 16) and/or seek summary adjudication on several issues.

1) COA No. 13 – Ralph Act - Civ. Code § 51.7

"The elements of a Ralph Act claim for threatened violence under California law are: (1) The defendant intentionally threatened violence against the plaintiff or her property, whether or not [] defendant actually intended to carry out the threat; (2) A substantial motivating reason for the defendant's conduct was her perception of the plaintiff's protected characteristic as defined by the statute . . . ; (3) A reasonable person in plaintiff's position would have believed that defendant would carry out the threat; (4) A reasonable person in plaintiff's position would have been intimidated by defendant's conduct; (5) Plaintiff was harmed; and (6) Defendant's conduct was a substantial factor in causing the plaintiff's harm." (*Black Lives Matter-Stockton Chapter v. San Joaquin Cty. Sheriff's Off.*, 398 F. Supp. 3d 660, 678–79 (E.D. Cal. 2019).) One of the protected characteristics as defined by the statute is "position in a labor dispute." (Civ. Code § 51.7(b)(1).)

"(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability." (Gov't Code § 815.2.)

"Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the *result of the exercise of the discretion vested in him, whether or not such discretion be abused.*" [Emphasis added.] (Gov't Code § 820.2.) "Sheriffs are among the public employees subject to immunity under section 820.2." (*Steinle v. City & Cnty. of San Francisco*, 230 F. Supp. 3d 994, 1020 (N.D. Cal. 2017), *aff'd*, 919 F.3d 1154 (9th Cir. 2019).)

Defendants contend this COA is barred as the officers are immune under Gov't Code § 820.2 as their acts regarding Plaintiff were discretionary and not ministerial, and that Plaintiff cannot show any violence was committed against her as required under this COA.

"Whether or not a public employee is immune from liability under section 820.2 depends in many cases upon whether the act in

question was “discretionary” or “ministerial,” respectively. [Citations.] For this reason, contentions such as the City makes here have frequently required judicial determination of the category into which the particular act falls: i.e., whether it was ministerial because it amounted “only to an obedience to orders, or the performance of a duty in which the officer is left no choice of his own,” or discretionary because it required “personal deliberation, decision and judgment.” (McCorkle v. City of Los Angeles (1969) 70 Cal. 2d 252, 260–61 (“McCorkle”).)

“[T]here is no requirement that the public employee's exercise of discretion be based on “a *strictly careful, thorough, formal, or correct* evaluation” because “[s]uch a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” (Krolikowski v. San Diego City Employees' Ret. Sys. (2018) 24 Cal. App. 5th 537, 550–51.)

Here, Patricia Baglien (“Plaintiff”) and Plaintiff’s former employers, Nicole Garcia (“Nicole” individually) and George Garcia (“Garcias” together with Nicole), had a disagreement over whether Plaintiff could continue to remain in the home after Plaintiff’s employment was terminated. Defendants arrived on scene to find a dispute over the right to be on the property. Defendants then proceeded to gather information from the individual present. Plaintiff told Defendants she had not been evicted, that the unlawful detainer action was still pending, that Nicole had changed the locks which required Plaintiff to enter the house through a window, and Nicole had boxed up all of Plaintiff’s possessions when Plaintiff was away in Las Vegas for three-days. Plaintiff could produce no lease or contract stating she had the right to be on the property. Nicole notified Defendants that she was the owner of the home, she had evicted Plaintiff and Plaintiff had no right to be there, Nicole had a special needs child who could not communicate when he was sick, and she was concerned about Plaintiff possibly transmitting COVID to Nicole and the children since Plaintiff had been gone. Garcias’ new childcare provider notified Defendants that Plaintiff had been yelling, which scared the children. Defendants then attempted to mediate a peaceful resolution between Plaintiff and Nicole wherein Nicole would give Plaintiff \$600 to leave the property and rent a hotel room. Defendants gave Plaintiff the option to take the money and leave, or to be arrested for trespassing.

The actions of Defendants, with perhaps the exception of the initial response to the call, all appear to be discretionary and not ministerial as Defendants appeared to have weighed the evidence presented to them and decided to order Plaintiff to leave the property under threat of arrest. While Plaintiff alleged the COVID-19 moratorium on evictions was in place at the time and Defendants improperly “evicted” her, Defendants appear to have taken this into consideration as Plaintiff notified Defendants of the issue and Hartz contacted someone in the eviction department to determine if the moratorium applied to this set of facts.